

BUILDING & PERMITTING OFFICE

Department: Evans County Code Enforcement / Board of Commissioners

Address: 613 W. Main Street, Claxton, GA 30417

Phone: 912-739-3868

Permits website: <https://evanscounty.org/departments/code-enforcement/>

Code of ordinances: <https://evanscounty.org/government/county-ordinances/>

MANUFACTURED HOME NOTES

- Code enforcement focuses on county ordinances (solid waste, litter, animal control); building permit questions can also go through the commissioners' office at 3 Freeman Street, 912-739-1141
- County ordinances are posted on the county website rather than Municode; call to confirm current mobile home permit rules

Georgia: installation must follow the state Rules for Manufactured Homes (O.C.G.A. Title 8-2, Art. 2) using state-licensed installers; an installation permit and insignia are required, and local permits/inspections apply.

Prepared by Select Home Center · 6047 Second St. N., Folkston, GA 31537 · 912-208-6065 · Last updated August 11, 2026. Verify all requirements with the county before permitting; codes and fees change.

No base document

MANUFACTURED HOME ORDINANCE

AN ORDINANCE AMENDING THE CODE OF ORDINANCES OF EVANS COUNTY, GEORGIA TO REVISE THE STANDARDS FOR INSTALLATION OF PRE-OWNED MANUFACTURED HOMES.

WHEREAS, the General Assembly of the State of Georgia has declared that no county shall impose any health or safety standards or conditions based upon the age of a manufactured home;

WHEREAS, under authority of the Constitution of the State of Georgia and O.C.G.A. § 8-2-170 *et seq.*, a county may establish standards, conditions, and an inspection program for pre-owned manufactured homes which are relocated; and

WHEREAS, promotion and maintenance of property values within the jurisdiction and the health and general welfare of the citizens of Evans County are furthered when standards for the condition of structures, including pre-owned manufactured homes, are established and enforced.

NOW, THEREFORE, BE IT RESOLVED by the Evans County Board of Commissioners that all manufactured homes relocated to or within the jurisdiction shall comply with the provisions of this Ordinance.

Section 1. Definitions. The following words, terms, or phrases, when used in this Ordinance, shall have the meanings ascribed to them in this Section.

- (a) *Applicant* means any person seeking to install a manufactured home in the unincorporated area of Evans County.
- (b) *Building Inspector* means the person appointed, employed, or otherwise designated as the director of planning, permits and inspections; the county building official or any of his or her assistants.
- (c) *Certificate of Occupancy* means a document issued by the building inspector certifying that a pre-owned manufactured home is in compliance with applicable requirements set forth by this Ordinance and indicating it to be in a condition suitable for residential occupancy.
- (d) *Guarantee of Condition Bond* means a surety bond to guarantee that the affidavit and photographs required by paragraphs (1) and (2) of subsection (a) of Section 3 of this Ordinance reasonably portray or represent the existing condition of the pre-owned manufactured home proposed for relocation. In lieu of the bond, a cash deposit may be deposited with the County.

- (e) *Install* means to construct a foundation system and to place or erect a manufactured home on such foundation system. Such term includes, without limitation, supporting, blocking, leveling, securing, or anchoring such manufactured home and connecting multiple or expandable sections of such manufactured home.
- (f) *Jurisdiction* means the unincorporated areas of Evans County, Georgia.
- (g) *Manufactured Home* means a structure, transportable in one or more sections which, in the traveling mode, is eight body feet or more in width or 40 body feet or more in length or, when erected on site, is at least 12 feet in width and 56 feet in length and containing 672 or more square feet; which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities and includes the plumbing, heating, air-conditioning, and electrical systems contained therein; except that such term shall include any structure which meets all the requirements of this paragraph except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the Secretary of Housing and Urban Development and complies with the standards established under the National Manufactured Housing Construction and Safety Standards Act of 1974, 42 U.S.C. Section 5401, *et seq.*
- (h) *Pre-Owned Manufactured Home* means any manufactured home that has been previously used as a residential dwelling and has been titled.

Section 2. Conditions. All pre-owned manufactured homes located in the jurisdiction shall bear a label certifying it was constructed in compliance with the National Manufactured Housing Construction and Safety Standards Act of 1974, 42 U.S.C. Section 5401, *et seq.* (the HUD Code) and shall be installed in accordance with O.C.G.A. § 8-2-160, *et seq.*

Section 3. Permitting, Inspection, Certificate of Occupancy and Fees. A permit shall be required to locate a pre-owned manufactured home in the jurisdiction. All permits shall be issued within 30 days of receipt of all items listed in subsections (a)(1)-(4) of this Section.

- (a) Permit. To obtain a permit, applicants shall provide to the building inspector:

- (1) An affidavit signed by the applicant that the pre-owned manufactured home meets health and safety standards required by this Act;
- (2) Photographs of the interior and exterior of the pre-owned manufactured home providing evidence that home meets the minimum health and safety standards of Section 4 of this Ordinance;

- (3) A \$100.00 refundable guarantee of condition bond or \$100.00 refundable cash deposit; and
 - (4) The permit and inspection fee required by subsection (d) of this Section.
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- (b) Inspection. Upon receipt of a permit, applicants may relocate the manufactured home on a residential site for the purposes of inspection. Applicant shall arrange for an inspection to be held once the installation of the manufactured home is complete.
 - (c) Certificate of Occupancy. A certificate of occupancy shall be issued to the applicant at such time that the building inspector certifies that the requirements of this Ordinance have been met.
 - (d) Fee. A permit and inspection fee of \$225.00 shall be charged to the Applicant to cover the cost to the County to process the permit application and inspect the pre-owned manufactured home. Such fee shall cover the initial inspection and one follow-up inspection. The applicant shall be charged \$100.00 for each additional follow-up inspection that may be necessary.
 - (e) Alternative Inspection. At the request of the applicant, the building inspector may, at his or her discretion, inspect a pre-owned manufactured home prior to it being relocated. If the building inspector travels outside the jurisdiction for an inspection, an additional fee of \$100.00 shall apply.

Section 4. Minimum Health and Safety Standards. All pre-owned manufactured homes shall comply with the following before being issued a certificate of occupancy by the building inspector.

- (a) HUD Code. Every pre-owned manufactured home located in the jurisdiction shall be in compliance with the Federal Manufactured Housing Construction and Safety Standards Act, 42 U.S.C. 54401-5445 (the HUD Code) and shall not have been altered in such a way that the home no longer meets the HUD Code.
- (b) Interior Condition. Every floor, interior wall, and ceiling of a pre-owned manufactured home shall be in sound condition. Doors and windows shall be operable, watertight and in good working condition. The floor system shall be in sound condition and free of warping, holes, water damage, or deterioration.
- (c) Exterior Condition. The exterior of all pre-owned manufactured homes shall be free of loose or rotting boards or timbers and any other conditions that might admit rain or moisture to the interior portions of the walls or to occupied spaces. The exterior shall be free of rot, rust, and mildew. Roofs shall be structurally sound and have no obvious defects that might admit rain or cause moisture to collect on the interior portions of the home.

- (d) Sanitary Facilities. Every plumbing fixture, water, and waste pipe of a pre-owned manufactured home shall be in a sanitary working condition when properly connected and shall be free from leaks and obstructions. Each home shall contain a kitchen sink. Each bathroom shall contain a lavatory and water closet. At least one bathroom shall contain a tub and/or shower facility. Each of these fixtures shall be checked upon being connected to ensure they are in good working condition.
- (e) Heating Systems. Heating systems shall be safe and in working condition. Un-vented heaters shall be prohibited.
- (f) Electrical Systems. Electrical systems (switches, receptacles, fixtures, etc.) shall be properly installed and wired and shall be in working condition. Distribution panels shall be in compliance with the approved listing, complete with required breakers, with all unused openings covered with solid covers approved and listed for that purpose. The home shall be subject to an electrical continuity test to assure that all metallic parts are properly bonded.
- (g) Hot Water Supply. Each home shall contain a water heater in safe and working condition.
- (h) Egress Windows. Each bedroom of a manufactured home shall have at least one operable window of sufficient size to allow egress, if necessary.
- (i) Ventilation. The kitchen in the home shall have at least one operating window or other ventilation device.
- (j) Smoke Detectors. Each pre-owned manufactured home shall contain one operable battery-powered smoke detector in each bedroom and in the kitchen, which must be installed in accordance with the manufacturer's recommendations.
- (k) Skirting. All mobile homes shall be skirted with new, fireproof material such as metal or brick, unless specified otherwise by the inspector.
- (l) Ingress/Egress. All mobile homes shall have steps and/or landings at all doors of ingress and egress to the home.

Section 5. Enforcement.

- (a) Permanent connection to utilities shall not be approved until the building inspector has issued a certificate of occupancy.
- (b) Owners of pre-owned manufactured homes that are not in compliance upon a third inspection shall have their permit revoked and shall be required to remove the home from the jurisdiction at their own expense.
- (c) The guarantee of condition bond or cash deposit will be forfeited after 90 days from the date of inspection, unless all conditions and standards are met prior to the end of the 90 days or an extension has been issued in writing by the building inspector.

Section 6. New Manufactured Homes. A permit shall be required to locate a new manufactured home within the jurisdiction. A permit fee of \$100.00 shall apply.

Section 7. Camper Trailers. Camper trailers shall be allowed only on a temporary basis. They shall operate only by generator power; connection to permanent power will not be allowed. Camper trailers must have a self-contained, effluent storage tank (not a septic tank) for human waste in accordance with Health Department regulations. They must also have a current license plate.

Section 8. Entry/Relocation Permit. It is a violation of this Ordinance for any mover, hauler, person, or other entity to move a mobile home into Evans County or relocate an existing mobile home in Evans County without the owner first obtaining all necessary permits from the issuing authority.

Section 9. Exit Permit. It is a violation of this Ordinance for any mover, hauler, person, or other entity to move a mobile home from Evans County to another county without the owner first obtaining a mobile home exit permit from the issuing authority. Exit permits carry a fee of \$5.00.

Section 10. Transfer of Ownership Permit. It is a violation of this Ordinance for any person or legal entity to transfer the ownership and/or title of a mobile home presently located within Evans County, but which is not being moved or relocated by virtue of the transfer of ownership/title, without first obtaining a permit from the issuing authority. Such permits carry a fee of \$50.00.

Section 11. Additional Requirements. All mobile home owners shall obtain an electrical permit from the issuing authority and obtain a sewage permit from the Evans County Health Department for each mobile home prior to being used as a residential unit.

Section 12. Penalties. Failure to remove a pre-owned manufactured home from the jurisdiction upon failure to receive a certificate of occupancy shall be punishable by a fine of \$1,000.00. Each day any violation under this Ordinance continues shall be considered a separate offense.

Section 13. Repealer. All ordinances or parts of ordinances in conflict with this Ordinance are repealed, except that nothing in this Ordinance shall be construed to permit the location of manufactured homes in areas where they are not authorized by applicable zoning and land use regulations.

Section 14. Severability. Should any provision of this Ordinance be rendered invalid by a court of law, the remaining provisions shall continue in force and effect until amended or repealed by action of the County Board of Commissioners.